

26STCV09081 26STCV09081

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Case Number: 26STCV09081 Hearing Date: July 15, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: July 15, 2026

Case Name: 26STCV09081

Case

No.: Mirakhor, et

al. v. Galen, et al.

Matter: Demurrer with Motion to Strike

Moving

Party: Defendants Steven Galen

doing business as The Colonial Square, Suzanne Galen, individually and as

Trustee of The Eugene H. Galen and Suzanne E. Galen Family Trust, and Sead

Nurkovic

Responding Party: Plaintiff Ebrahim Mirakhor and Treza

Mirakhor

Tentative

Ruling: Defendants Steven Galen, doing

business as The Colonial Square, Suzanne Galen, individually and as Trustee of

The Eugene H. Galen and Suzanne E. Galen Family Trust, and Sead Nurkovic's

demurrer is overruled in part and sustained in part.

Defendants'

motion to strike was not filed with the Court.

Plaintiff

Ebrahim Mirakhor and Treza Mirakhor ("Plaintiffs") filed this action against Defendants Steven Galen doing business as The Colonial Square, Suzanne Galen, individually and as Trustee of The Eugene H. Galen and Suzanne E. Galen Family Trust, and Sead Nurkovic (collectively "Defendants"). The Complaint alleges eight causes of action for: (1) negligence; (2) constructive eviction; (3) violation of the Los Angeles Tenant Anti-Harassment Ordinance; (4) breach of contract; (5) nuisance; (6) trespass; (7) intentional infliction of emotional distress; and (8) unfair business practices.

Defendants

demur to Plaintiffs' third, sixth, and seventh causes of action. Plaintiff opposes.

The

Court notes that Defendants reserved this hearing as a motion to strike, and that an opposition and reply were filed; however, the motion to strike was not filed with the Court.

Legal Standard

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading by raising questions of law. (Postley v. Harvey (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court " ' 'treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law . . . ' " (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High

School Dist. (1996) 50 Cal.App.4th 726, 733.)

“The

court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436.) “Immaterial” or “irrelevant” matters include allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subds. (b)(1)-(3).)

Analysis

Meet and
Confer

Pursuant to Code of Civil Procedure

section 430.41, “a demurring party is required to meet and confer in person, by telephone, or video conference with the party that filed the pleading. . . .” (Code Civ. Proc. § 430.41, subd. (a).) A moving party in a motion to strike must meet and confer before filing the motion. (Code Civ. Proc. § 435.5, subd. (a).)

Defendants

state that the parties met and conferred on April 20, 2026. (Messih Decl., ¶ 3.) However, the parties did not fulfill their obligation to meet and confer in accordance with Code of Civil Procedure, section 430.41, subdivision (a). In the interest of judicial efficiency, the Court will address the merits of Defendants’ demurrer and motion to strike.

Demurrer

Defendant

demurs to Plaintiffs’ third, sixth, and seventh causes of action on the basis of uncertainty and for failure to allege sufficient facts.

Uncertainty

Per Code of Civil Procedure section

430.10, subdivision (f), a demurrer must be sustained if a pleading is uncertain. (Code Civ. Proc., § 430.10, subd. (f).) The term uncertain means “ambiguous and unintelligible.” (Ibid.) However, demurrers for uncertainty will not be sustained unless “the pleading is so incomprehensi[ve] that a defendant could not reasonably respond.” (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695 , quoting Mahan v. Charles W. Chan Ins. Agency, Inc. (2017) 14 Cal.App.5th 841, 848, fn.3 (A.J. Fistes Corp.).)

In looking

at the Complaint as a whole, it is not incomprehensible to sustain the demurrer on this basis. The Complaint alleges sufficient facts for Defendants to respond.

Thus, the

Court overrules the demurrer.

Failure

to Allege Sufficient Facts

Third Cause of

Action—Violation of the Los Angeles Tenant Anti-

Harassment

Los Angeles Municipal Code section 45.33, also known as the Tenant Anti-Harassment Ordinance (“TAHO”), prohibits landlords from engaging in a wide range of harassing conduct directed at tenants with the intent to influence them to vacate their rental unit or waive rights under law. Prohibited conduct includes reducing or eliminating housing services required by lease or law, failing to make necessary repairs, engaging in repeated acts or omissions that disturb a tenant’s comfort or peace, and other actions or threats that interfere with a tenant’s lawful occupancy. (LAMC § 45.33.) Tenant Harassment is defined as a landlord’s bad-faith conduct directed at a specific tenant or tenants that causes the latter detriment or harm. (Ibid.) “Bad faith” refers to willful, reckless, or grossly negligent conduct.” (Ibid.)

Defendants

contend that Plaintiffs did not allege any facts to support that Defendants acted in “bad faith.” Defendants argue that a violation of TAHO requires more than “an existence of ongoing maintenance issues.” (Mot., 6:13-15.)

The

Complaint alleges that Defendants did not respond to rodent infestation over a month. (Compl., ¶¶ 13-15.) Plaintiffs allege that issue was ongoing and that from April 2024 through June 2025, Plaintiffs would not use their air conditioning and heater out of “fear[] it would blow debris or feces into the unit or worsen the foul odor from the vents. Plaintiffs endured falling debris in the bathroom, constant scratching and squeaking inside the walls, the stench of rodent urine and feces, and a mite infestation.” (Compl., ¶ 19.) Moreover, the Complaint also alleges that Defendant Suzanne Galen told Plaintiffs that they may prefer to live elsewhere, questioned why Plaintiffs did not move, and recommended that Plaintiffs move. (Compl., ¶¶ 21-25.)

While

Defendants contend that the allegations do not support bad faith conduct, the Court finds this argument unpersuasive. At this stage of the proceedings, the Court finds that sufficient allegations have been made in the Complaint to allege a cause of action.

Thus, the

Court overrules the demurrer as to the third cause of action.

Sixth Cause of
Action—Trespass

“Generally,

landowners and tenants have a right to exclude persons from trespassing on private property; the right to exclude persons is a fundamental aspect of private property ownership.” (Ralphs Grocery Co. v. Victory Consultants, Inc. (2017) 17 Cal.App.5th 245, 258, as modified (Nov. 6, 2017).)

“[I]n order to state a cause of action for trespass a plaintiff must allege an unauthorized and tangible entry on the land of another, which interfered with the plaintiff’s exclusive possessory rights.” (McBride v. Smith (2018) 18 Cal.App.5th 1160, 1174.)

Plaintiffs

allege that Defendants trespassed in Plaintiffs' unit by allowing mice and rodents to enter their unit without their consent. (Compl., ¶¶ 74-75.) Plaintiff argues that vermin, mice, and rats may be the basis for trespass according to Roberts. (Opp., 6:20-21.) However, the Court is not persuaded. It is unclear to the Court how Roberts supports the proposition that vermin, mice, and rodents constitute a trespass. In the absence of any legal authority to support its argument, the Court finds that Plaintiffs have not alleged sufficient facts to support the cause of action.

Thus, the

Court sustains the demurrer as to the sixth cause of action.

Seventh

Cause of Action—Intentional Infliction of Emotional Distress

“The

elements of the tort for intentional infliction of mental distress are: (1) outrageous conduct by the defendant, (2) intention to cause or reckless disregard of the probability of causing emotional distress, (3) severe emotional suffering and (4) actual and proximate causation of emotional distress.” (Stoiber v. Honeychuck (1980) 101 Cal.App.3d 903, 921.) “A defendant's conduct is “outrageous” when it is so ““extreme as to exceed all bounds of that usually tolerated in a civilized community.” ” [Citation.] And the defendant's conduct must be ““intended to inflict injury or engaged in with the realization that injury will result.”” (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050–1051.) ““The requirement that the defendant's conduct be directed primarily at the plaintiff is a factor which distinguishes intentional infliction of emotional distress from the negligent infliction of such injury.”” (Potter v. Firestone Tire & Rubber Co. (1993) 6 Cal.4th 965, 1002.)

Defendants

argue that the Complaint is devoid of allegation that establish that Defendants intended to cause intentional infliction of emotional distress, or that Defendants suffered severe emotional distress. The Court agrees, The Complaint alleges conclusory statements to support its cause of action for intentional infliction of emotional distress. (See Compl., ¶¶ 26-27; 80-89.)

Thus, the

Court sustains the demurrer as to the seventh cause of action.

Motion
to Strike

As
addressed above, it appears that Defendants served a motion to strike but did not timely file it with the Court. The Court is unable to rule on Defendants' motion.

Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not "sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment"]; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 ["A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment."]; Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 ["When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend."].) The burden is on the complainant to show the Court that the pleading can be successfully amended. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

Plaintiffs will be given the
opportunity to amend as to the sixth and seventh causes of action.

Conclusion

Defendants

Steven Galen doing business as The Colonial Square, Suzanne Galen, Individually and as Trustee of The Eugene H. Galen and Suzanne E. Galen Family Trust, and Sead Nurkovic's demurrer to the third cause of action is overruled.

Defendants

Steven Galen doing business as The Colonial Square, Suzanne Galen, Individually and as Trustee of The Eugene H. Galen and Suzanne E. Galen Family Trust, and Sead Nurkovic 's demurrer as to the sixth and seventh cause of action is sustained.

Plaintiffs

shall have leave to amend and must file their amended pleading by August 14, 2026.